

Franciscus Dylan Rosario,
7624 Melody,
Rohnert Park, CA 94928,
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802
VERBATIM 801 ADMISSIONS
AND 802 CONTRADICTIONS

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AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC- CEPT

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under California Rules of Court, rule 3.1113, subdivision (d); California Rules of Court, rule 3.1110, subdivision (c); Code of Civil Procedure section 425.16, subdivision (b)(2); and Evidence Code section 452, subdivision (d).
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.
4. The Court's authority to consider the substance is under *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564 to 1569; and *Aaronoff v. Martinez-Senftner* (2006) 136 Cal.App.4th 910, 919 (existence and contents of court records noticeable).
5. This paper is timely filed for the June 24, 2026 hearing under Code of Civil Procedure section 1005, subdivision (b), and Department 302's May 13, 2026 scheduling order.

PURPOSE

The verbatim quotations below are reproduced from the noticed 801 filings and from the operative 802 defense filings already on file in this Department. Each block is keyed to the rank-ordered contradiction nodes in the accompanying memorandum (filing item 02, Section VI) and to the lock-points (filing item 02, Section VII).

The 801 column reflects the position CSAA successfully advanced and that Department 301 accepted on May 12, 2026. The 802 column reflects the inconsistent position CSAA now takes in this Department. The implied admission is not the truth of Plaintiff's allegation. It is defense's adoption of that allegation as the protected act or operative motion premise. Under each rank, Plaintiff adds a short interpretive paragraph identifying the adopted 801 motion premise, the inconsistent 802 position, the doctrinal consequence under *Aguilar / Jackson, Park*, and *Aubry / Blank* where applicable, and the specific 802 motion or argument that fails or is limited as a result. Plaintiff seeks no judicial notice of the truth of any quoted statement; the quotations support only the existence and contents of the records, legal effect, and adopted litigation positions, and the implied-admission paragraphs are offered as Plaintiff's doctrinal synthesis, not as evidentiary findings.

Note on 'implied admissions': The implied admission identified under each rank below is not the truth of Plaintiff's underlying allegation. It is defense's adoption of that allegation as the protected act or operative motion premise in 801. Under *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060, prong one turns on what the defendant's protected activity is, not on the truth of what the plaintiff alleged about that activity. Defense's selection of the quoted acts as the protected gravamen is the position that binds; the binding effect flows from position adoption, not from truth.

SUPER RANK 0A (LAYER B): 802 INVESTIGATION-DUTY AND INVESTIGATION COMPLETENESS THEORY VERSUS MIL TRUTH-CLAIMS IN 801 802 OPERATIVE POSITION (2026 motions)

802 Anti-SLAPP MPA, April 9, 2026, at p. 9 (lines 1216 to 1224):

1 “Here, CSAA reviewed the available evidence, including the statements of its Insured,
2 and reached a prompt denial position. This is protected conduct in anticipation of litigation.
3 Indeed, CSAA had a duty to promptly investigate Plaintiff’s then-pending claim,
4 as codified in Insurance Code section 790.03 and 10 California Code of Regulations
5 section 2695.7.”

6 802 CCP 436 MPA, April 22, 2026, at p. 6 (lines 613 to 629):

7 “CSAA reached a different conclusion from the evidence, and the jury agreed with
8 CSAA. . . . Crucially, the jury reached the same conclusion that CSAA reached in
9 its investigation.”

10 802 CCP 436 MPA, April 22, 2026, at p. 7 (line 742):

11 “CSAA performed an investigation, determined that its insured was not liable, and in-
12 formed Plaintiff of their decision.”

13 **802 PLEADING POSTURE (FAC, alleged true on demurrer)**

14 802 Anti-SLAPP MPA, April 9, 2026, at p. 5 (lines 885 to 905), recital of FAC paragraph 4 (see
15 also Rank 2):

16 “the Denial Letter representation of a ‘concluded’ investigation was materially false
17 when made because, at that time, CSAA had not obtained or reviewed basic, readily
18 obtainable, and foundational objective liability evidence for the incident, including: a.
19 911 audio; b. body-worn camera footage; and c. computer aided dispatch records.”

20 **PRIOR LITIGATION POSITION (MIL 6 and MIL 17; noticed 801-G/H)**

21 MIL 6, Tx 80936030, filed January 17, 2025 in CGC-21-594102, title:

22 “MOTION IN LIMINE NO. 6 TO EXCLUDE RECORDED MATERIALS, PHOTOGRAPHS,
23 OR DOCUMENTS OFFERED BY PLAINTIFF THAT WERE NOT PRODUCED IN
24 DISCOVERY”

25 MIL 6, page 2, Section II.A heading:

26 “Recorded Material, Photographs, Videos, Or Documents Offered by Plaintiff That
27 Were Not Produced In Discovery Should Be Excluded”

28 MIL 6, page 3, lines 1 to 5:

1 “exclude all documents and evidence, including but not limited to videos, photographs,
2 recorded materials, tangible items, or documents including audio of a 911 call purported
3 to be related to the incident, Plaintiff’s documents showing past and future wage loss or
4 other evidence that Plaintiff has failed to produce in discovery.”

5 MIL 17, Tx 80936053, filed January 17, 2025 in CGC-21-594102, page 3, lines 1261 to 1262:

6 “First, this alleged log and recording were not produced during discovery, rather pro-
7 duced at the eleventh hour prior to trial.”

8 MIL 17, page 3, lines 1264 to 1265:

9 “Defendant has no idea where this 911 call log or audio recording came from and who
10 created it.”

11 MIL 17, page 4, lines 1312 to 1313:

12 “Defendant has no idea who created the log and recording, how they were maintained,
13 how Plaintiff got them, or the identity of the custodian of the log and recording.”

14 MIL 17, page 4, lines 1313 to 1314:

15 “It does not appear that either the log or the recording were obtained via proper subpoena
16 process.”

17 **Implied admission and binding effect in CGC-25-631802**

- 18 1. The 802 motions ask Department 302 to credit that CSAA reviewed the available evidence,
19 performed an investigation, and complied with Insurance Code section 790.03 and 10 Cali-
20 fornia Code of Regulations section 2695.7 before issuing the February 25, 2021 denial letter.
- 21 2. The FAC recital, accepted as alleged at the pleading stage, says the denial letter described
22 a “concluded” investigation even though CSAA had not obtained or reviewed basic, readily
23 obtainable 911 audio, body-worn camera footage, and CAD. See also Rank 2.
- 24 3. The prior MIL position in CGC-21-594102 vouched the same silent-witness category as not
25 produced in discovery and of unknown provenance when defense sought exclusion.
- 26 4. The 802 invocation of section 790.03 and section 2695.7 is therefore an adopted litigation
27 position about investigation content and fair-claims inquiry, not merely background law, while
28 Plaintiff still does not assert any separate tort duty to provide evidence to a third party.

- 1 5. Under *Aguilar / Jackson*, and under *Aubry / Blank* where the FAC recital is accepted as
2 alleged, CSAA cannot ask Department 302 to credit a completed, regulation-compliant in-
3 vestigation while preserving the opposite MIL truth-claims in the noticed record.
- 4 6. The 802 anti-SLAPP, demurrer, and CCP 436 motions therefore fail or are limited under
5 Lock-Point 0 to the extent they depend on that investigation-completeness premise.

7 **SUPER RANK 0B: CONSTRUCTIVE PETITIONING NEXUS**

8 **801 ACCEPTED POSITION**

9 801 Anti-SLAPP MPA, April 9, 2026, at p. 11 (lines 1418 to 1424):

10 “However, even if CSAA did ratify PSA’s litigation tactics of seeking to exclude evi-
11 dence from trial, that activity (an insurance carrier directing its defense counsel to file
12 motions in limine) would clearly constitute litigation activity, and would be protected
13 conduct.”

14 **802 INCONSISTENT POSITION**

15 802 Anti-SLAPP MPA and 802 Demurrer, Section III.D heading (lines 837 to 840):

16 “DEFENDANT CSAA INITIALLY DENIED PLAINTIFF’S CLAIM AND SUBSE-
17 QUENTLY HAD NO ROLE IN LITIGATION, ASIDE FROM RETAINING INSUR-
18 ANCE DEFENSE COUNSELS AND FUNDING THE DEFENSE.”

19 802 Demurrer MPA, April 13, 2026, at p. 14 (lines 1925 to 1927):

20 “CSAA . . . did not actually litigate the trial. Indeed, Plaintiff’s FAC improperly imputes
21 the acts of retained insurance defense counsel, against Defendant.”

22 **Implied admission and binding effect in CGC-25-631802**

- 23 1. The implied admission is not factual ratification. It is CSAA’s adoption of a legal nexus
24 between itself and defense-team petitioning conduct as an operative motion premise.
- 25 2. The inconsistent 802 position denies any litigation role beyond retaining and funding counsel
26 and attacks imputation of defense counsel conduct to CSAA.
- 27 3. Under *Aguilar / Jackson* and *Park*, CSAA may not invoke that nexus for 801 protection and
28 disown it for 802 dismissal.

- 1 4. The 802 no-role heading and the 802 demurrer’s improper-imputation argument therefore fail
2 or are limited under the Constructive Petitioning Bar.

4 **RANK 1: IN-COURT STATEMENTS (FACTUAL PETITIONING VS. “IN-
5 TERPRETATION”)**

6 **801 ACCEPTED POSITION**

7 801 Anti-SLAPP MPA, April 9, 2026, at pp. 9 to 11 (lines 1258 to 1290): The in-court rep-
8 resentations about “receipt, possession, and prior production” of the silent-witness materials are
9 statements within Code of Civil Procedure section 425.16, subdivisions (e)(1) and (e)(2), made
10 “in connection with an issue under consideration or review by a judicial body.” The 801 motion
11 proceeds on the basis that those in-court statements are statements of fact, sufficient to engage the
12 anti-SLAPP statute, and accepted as such by Department 301 in the May 12 Order.

13 **802 INCONSISTENT POSITION**

14 802 Demurrer MPA, April 13, 2026, at p. 9 (lines 1364 to 1374):

15 “the FAC’s allegations that . . . CSAA-funded counsel ‘subsequently repeated and
16 perpetuated the denial pattern in court by making false and misleading representations
17 regarding receipt, possession, and prior production of the same foundational objective
18 evidence CSAA had failed to obtain before issuing the Denial Letter’ . . . **None**
19 **of these allegations constitute ‘knowingly false representations.’ . . . All these**
20 **allegations substantiate is a good faith dispute over the interpretation of evidence**
21 **and liability.”**

22 **Implied admission and binding effect in CGC-25-631802**

- 23 1. The 801 position adopts the in-court statements about receipt, possession, and prior produc-
24 tion as factual representations attributable to CSAA’s institutional defense for purposes of
25 protected petitioning.
26 2. The inconsistent 802 position recasts those same statements as a good faith dispute over
27 interpretation rather than knowingly false representations.

- 1 3. Under *Aguilar / Jackson* and *Park*, CSAA may not obtain anti-SLAPP protection by treating
2 the statements as factual petitioning in 801 while defeating 802 liability by rebranding them
3 as non-factual interpretation.
- 4 4. The 802 demurrer's p. 9 recharacterization at lines 1364 to 1374 therefore fails or is limited
5 under Lock-Point 3.

6

7 **RANK 2: PRE-SUIT INVESTIGATION (THREE MUTUALLY EXCLU-**
8 **SIVE POSTURES)**

9 Super Rank 0A addresses the MIL versus 802 investigation-completeness contradiction. This rank
10 addresses the three mutually exclusive 802 postures only.

11 **802 ACCEPTED POSITION (POSTURE A): "REVIEWED" / "PERFORMED" / "JURY**
12 **AGREED"**

13 802 Anti-SLAPP MPA, April 9, 2026, at p. 9 (lines 1216 to 1224): "Here, CSAA reviewed the
14 available evidence, including the statements of its Insured, and reached a prompt denial position.
15 This is protected conduct in anticipation of litigation. Indeed, CSAA had a duty to promptly
16 investigate Plaintiff's then-pending claim, as codified in Insurance Code section 790.03 and 10
17 California Code of Regulations section 2695.7."

18 802 CCP 436 MPA, April 22, 2026, at p. 6 (lines 613 to 629): "CSAA reached a different conclu-
19 sion from the evidence, and the jury agreed with CSAA. . . . Crucially, the jury reached the same
20 conclusion that CSAA reached in its investigation."

21 802 CCP 436 MPA, April 22, 2026, at p. 7 (line 742): "CSAA performed an investigation, deter-
22 mined that its insured was not liable, and informed Plaintiff of their decision."

23 **802 ACCEPTED POSITION (POSTURE B): "HAD NOT OBTAINED" THE FOUNDA-**
24 **TIONAL EVIDENCE**

25 802 Anti-SLAPP MPA, April 9, 2026, at p. 5 (lines 885 to 905), recital of FAC paragraph 4 (taken
26 as alleged for purposes of motion):

27 "the Denial Letter representation of a 'concluded' investigation was materially false
28 when made because, at that time, CSAA had not obtained or reviewed basic, readily

1 obtainable, and foundational objective liability evidence for the incident, including: a.
2 911 audio; b. body-worn camera footage; and c. computer aided dispatch records.”

3 **802 ACCEPTED POSITION (POSTURE C): “NO WAY OF KNOWING”**

4 802 Anti-SLAPP Reply, May 5/6, 2026, at p. 5 footnote 2:

5 “This is setting aside the fact that Plaintiff has no way of knowing what steps Defendant
6 CSAA took in investigating the claim. All Plaintiff has to cite is the denial letter itself.”

7 **Implied admission and binding effect in CGC-25-631802**

8 **Highest-yield implied admission.**

- 9 1. The 801 position adopts the institutional investigation file and defense-file transfer history as
10 operative protected litigation conduct, not as public material available from the denial letter
11 alone.
- 12 2. The inconsistent 802 position asserts that Plaintiff’s theory is insufficiently pleaded as a mat-
13 ter of law on the face of the pleading while also claiming Plaintiff has no way to know CSAA’s
14 investigation steps.
- 15 3. Under *Aguilar / Jackson* and *Aubry / Blank*, CSAA may not rely on defense-side investigation
16 facts for protection while denying the pleading effect of the FAC recital that CSAA had not
17 obtained or reviewed the foundational evidence.
- 18 4. The 802 demurrer’s facial insufficiency argument therefore fails or is limited under Lock-
19 Points 2 and 5.

20
21 **RANK 3: POSSESSION OF THE SILENT-WITNESS MATERIALS (IN-**
22 **SIDE VS. OUTSIDE DEFENSE FILE)**

23 **801 ACCEPTED POSITION**

24 801 Anti-SLAPP MPA, April 9, 2026, at p. 9 (lines 1262 to 1266):

25 “Here, all the alleged activities against these moving Defendants arise from Defendants’
26 pre-trial investigation and litigation activity. That activity includes gathering evidence
27 in discovery, maintaining that evidence, transferring files to substituted counsel, and

engaging in pre-litigation investigations.”

801 Anti-SLAPP MPA, April 9, 2026, at p. 6 (lines 1065 to 1072):

“CARBONE and CHAMBERS ‘had possession of the defense file when the 911 audio, body-worn camera footage, and CAD materials were served on defense counsel during discovery.’ ”

801 Demurrer MPA, April 13, 2026, at pp. 3 to 4 (lines 681 to 690):

“Plaintiff’s allegations focus on Defendants’ acquisition, retention, and production of this material evidence, during the course of pre-trial discovery, and essentially, that Defendants were negligent in how they litigated the defense of the underlying lawsuit.”

802 INCONSISTENT POSITION

802 Anti-SLAPP MPA, April 9, 2026, at p. 5 (lines 901 to 905), recited and not denied:

“CSAA-funded counsel subsequently repeated and perpetuated the denial pattern in court by making false and misleading representations regarding receipt, possession, and prior production of the same foundational objective evidence **CSAA had failed to obtain** before issuing the Denial Letter.”

802 Demurrer MPA, April 13, 2026, at p. 5 (lines 885 to 905): same recital, treated as the “good faith dispute over the interpretation of evidence and liability” framing at p. 9 (lines 1364 to 1374).

Implied admission and binding effect in CGC-25-631802

1. The 801 position adopts defense counsel’s possession, retention, transfer, and production of the same physical objects as operative protected litigation conduct.
2. The inconsistent 802 position treats the same 911 audio, body-worn camera footage, and CAD materials as evidence CSAA had failed to obtain.
3. Under *Aguilar / Jackson* and *Aubry / Blank*, CSAA may not make the same materials protected defense-file litigation conduct in 801 while treating them as outside CSAA’s obtained evidence in 802.
4. The 802 demurrer’s “CSAA had failed to obtain” framing therefore fails or is limited under Lock-Points 1 and 2.

1 **RANK 4: SAME JURY, SAME EVIDENCE (PRESENTED VS. DEPRIVED)**

2 **801 ACCEPTED POSITION**

3 801 Anti-SLAPP MPA, April 9, 2026, at p. 3 (lines 729 to 738):

4 “Crucially, the FAC does not claim that these items of ‘material evidence’ (911 calls,
5 body-worn camera footage, and CAD logs) were excluded from presentation to the jury.
6 In fact, on the contrary, all this evidence was presented to the jury.”

7 802 Anti-SLAPP MPA, April 9, 2026, at p. 4 (lines 716 to 734):

8 “All the ‘foundational objective liability evidence’ . . . (discussing 911 calls, bodycam
9 footage, and CAD logs) referenced in Plaintiff’s FAC was submitted to the jury
10 Ultimately, a defense verdict was returned in favor of the Insured.”

11 **802 INCONSISTENT POSITION (RECITED AND NOT DENIED)**

12 802 Demurrer MPA, April 13, 2026, at p. 5 (lines 891 to 895), recital of FAC paragraph 25A:

13 “the third-party litigation forced by CSAA’s Denial Letter misrepresentation culminated
14 in a 9-3 defense verdict in the Underlying Action, in which the jury was deprived of the
15 governing legal standard and foundational evidence”

16 **Implied admission and binding effect in CGC-25-631802**

17 **Highest-yield implied admission.**

- 18 1. The 801 position adopts the presentation and handling of the silent-witness materials as op-
19 erative litigation conduct, which prevents CSAA from using the verdict as clean vindication
20 while the same record preserves the foundational-evidence dispute.
- 21 2. The inconsistent 802 position treats the same 9-3 defense verdict as clean validation of
22 CSAA’s denial position.
- 23 3. Under *Aguilar / Jackson, Park*, and *Aubry / Blank* where applicable, CSAA may not in-
24 voke the verdict as dispositive while the same noticed records preserve a deprivation-of-
25 foundational-evidence dispute tied to the same litigation conduct.
- 26 4. The anti-SLAPP and section 436 reliance on the 9-3 verdict therefore fails or is limited under
27 Lock-Point 4.

RANK 5: CSAA SPOKE AND DID NOT SPEAK IN COURT

801 ACCEPTED POSITION

801 Anti-SLAPP MPA, April 9, 2026, at p. 6 (lines 1040 to 1042):

“CSAA Insurance Exchange, made multiple false and misleading representations to the Court about receipt, possession, and prior production of the materials. These false representations were memorialized in written motions in limine and in open court statements.”

802 INCONSISTENT POSITION

802 Anti-SLAPP MPA and 802 Demurrer, Section III.D heading: “DEFENDANT CSAA INITIALLY DENIED PLAINTIFF’S CLAIM AND SUBSEQUENTLY HAD NO ROLE IN LITIGATION, ASIDE FROM RETAINING INSURANCE DEFENSE COUNSELS AND FUNDING THE DEFENSE.”

802 Demurrer MPA, April 13, 2026, at p. 14 (lines 1921 to 1927):

“CSAA . . . did not actually litigate the trial. Indeed, Plaintiff’s FAC improperly imputes the acts of retained insurance defense counsel, against Defendant.”

Implied admission and binding effect in CGC-25-631802

1. The 801 position adopts CSAA-imputed court speech as the operative protected petitioning premise.
2. The inconsistent 802 position denies that CSAA had any litigation role beyond retaining and funding defense counsel.
3. Under *Aguilar / Jackson* and *Park*, CSAA may not secure protection for CSAA-imputed court statements and then deny CSAA’s institutional speech in the same litigation.
4. The Section III.D “no role in litigation” heading and the demurrer p. 14 text therefore fail or are limited under Lock-Point 1.

RANK 6: NO INVESTIGATION-FILE ERASURE BAR

802 ACCEPTED POSITION (TO IMMUNIZE)

802 Anti-SLAPP MPA, April 9, 2026, at p. 9 (lines 1224 to 1232):

1 “CSAA had a duty to promptly investigate Plaintiff’s then-pending claim, as codified in
2 Insurance Code section 790.03 and 10 California Code of Regulations section 2695.7,
3 the latter of which provides: ‘Upon receiving proof of claim, every insurer[] . . . shall
4 immediately, but in no event more than forty (40) calendar days later, accept or deny the
5 claim, in whole or in part.’ This is precisely what CSAA did: comply with its statutory
6 duty and issue a denial letter”

7 **802 INCONSISTENT POSITION (TO BAR)**

8 802 Demurrer MPA, April 13, 2026, at p. 10 (lines 1511 to 1525):

9 “the Code imposes no duty on CSAA (a third party in the original matter) to provide
10 evidence from their investigation into the event involving their insured, nor does it seek
11 to impose liability on Defendant for issuing a denial letter based upon their good faith
12 belief (and ultimately vindicated at trial) that their insured was not at fault.”

13 **Implied admission and binding effect in CGC-25-631802**

14 **Highest-yield implied admission.**

- 15 1. Plaintiff does not contend that Insurance Code section 790.03 creates the same duty as a tort
16 duty to provide evidence to a third party.
- 17 2. The narrower estoppel point is that CSAA invoked a compliant, privileged investigation pro-
18 cess as an operative protection premise, then treated the contents and steps of that same in-
19 vestigation process as legally irrelevant or unknowable when Plaintiff challenged the denial
20 letter.
- 21 3. Under *Aguilar / Jackson* and *Aubry / Blank*, CSAA may not use the existence and legiti-
22 macy of its investigation as a shield while erasing the procedural consequences of that same
23 investigation process.
- 24 4. The 802 demurrer p. 10 “no duty” argument therefore fails or is limited under Lock-Point 5.
- 25
-

**RANK 7: CHAIN OF CUSTODY (KNOWABLE FOR 801, UNKNOWN-
ABLE FOR 802)**

801 ACCEPTED POSITION

801 Anti-SLAPP MPA, April 9, 2026, at p. 6 (lines 1067 to 1070), recited and immunized:

“On May 4, 2023, Defendant CHAMBERS [and CARBONE] transferred the defense file to PSA pursuant to the Substitution of Attorney . . . without ensuring proper documentation and conveyance of the production history to successor counsel. This failure enabled [PSA] to make false and misleading representations to the Court that the materials were ‘news to me’ and had not been received until the eve of trial, when in fact the defense had possessed them during Defendant CHAMBERS’ tenure.”

801 Anti-SLAPP Reply, May 5, 2026, at p. 3:

“Plaintiff fails to cite any legal authority for the proposition that Defendants’ counsel (CARBONE and CHAMBERS) failing to properly transfer file materials to substituted counsel (PHILLIP SPALLAS) does not also fall within the Anti-SLAPP statute. These acts (transferring a defense file via email correspondence) are certainly communicative insofar as they require communication qua communication to effectuate such defense team file transfer.”

802 INCONSISTENT POSITION

802 Anti-SLAPP Reply, May 5/6, 2026, at p. 5 footnote 2:

“Plaintiff has no way of knowing what steps Defendant CSAA took in investigating the claim.”

Implied admission and binding effect in CGC-25-631802

Highest-yield implied admission.

1. The 801 position adopts the defense-file transfer and production history as communicative conduct for anti-SLAPP purposes.
2. The inconsistent 802 position says Plaintiff has no way of knowing what steps CSAA took in investigating the claim.

3. Under *Aguilar / Jackson* and *Park*, CSAA may not use the documented file transfer as protected petitioning in 801 while making the same chain of custody unknowable in 802.
4. The 802 anti-SLAPP reply footnote 2 “unknowable” defense therefore fails or is limited under Lock-Points 2 and 4.

CROSS-REFERENCE TABLE (RANK TO LOCK-POINT)

Rank	Subject	Accepted 801 position	Inconsistent 802 position	Affected lock-point
Super Rank 0A	802 investigation-duty and readily-obtainable overlay vs. MIL truth-claims	MIL 6 (Tx 80936030); MIL 17 (Tx 80936053)	802 Anti-SLAPP MPA p. 5 and p. 9; 802 CCP 436 MPA pp. 6 to 7	Lock-Point 0
Super Rank 0B	Constructive petitioning nexus	801-A p. 11	802 anti-SLAPP MPA Section III.D; 802 Demurrer p. 14	Lock-Point 1A, Constructive Petitioning Bar
1	In-court statements: factual vs. “interpretation”	801-A pp. 9 to 11	802 Demurrer p. 9	Lock-Point 3
2	Pre-suit investigation: three postures	801-A p. 6 (recited and immunized)	802 anti-SLAPP MPA p. 9; 802 CCP 436 MPA pp. 6 to 7; 802 anti-SLAPP Reply p. 5 fn 2	Lock-Points 2, 5
3	Possession: inside vs. outside defense file	801-A pp. 6, 9; 801-B pp. 3 to 4	802 anti-SLAPP MPA p. 5; 802 Demurrer p. 5	Lock-Points 1, 2

Rank	Subject	Accepted 801 position	Inconsistent 802 position	Affected lock-point
4	Same jury: pre-sented vs. deprived	801-A p. 3	802 Demurrer p. 5 (recited and not denied)	Lock-Point 4
5	CSAA spoke vs. did not speak in court	801-A p. 6	802 anti-SLAPP MPA Section III.D; 802 Demurrer p. 14	Lock-Point 1
6	No investigation-file erasure	802 anti-SLAPP MPA p. 9	802 Demurrer p. 10	Lock-Point 5
7	Chain of custody: knowable vs. un-knowable	801-A p. 6; 801-C p. 3	802 anti-SLAPP Reply p. 5 fn 2	Lock-Points 2, 4

Legend: Ranks 2, 4, 6, and 7 carry the cleanest doctrinal targets for the tentative ruling.

Each block above is offered solely to support the cross-case judicial estoppel framework set forth in the accompanying memorandum. Plaintiff seeks no judicial notice of the truth of any quoted statement and seeks no relief from Department 301.